

WITHOUT PREJUDICE SAVE AS TO COSTS

ROUND TABLE MEETING

AGENDA INPUT

Case Reference	Case Number
High Court	2026-086906
Labour Court (1)	2026-083299
Labour Court (2)	2026-077546

Party	Designation
Wilbur William Matthee	Self-Represented Complainant / Whistleblower
AfroCentric Investment Corporation Limited	Respondent & Representatives
Facilitator	To be confirmed (if applicable)
Date of Meeting	To be confirmed

SECTION 1: PRELIMINARY MATTERS

1.1 Confirmation of Decision-Making Authority

- All representatives attending on behalf of AfroCentric Investment Corporation Limited must have full and final decision-making authority to conclude a settlement agreement on the day of the meeting.
- The names and designations of all attending representatives must be provided to me in writing at least 24 hours prior to the meeting.

1.2 Meeting Protocol

- The meeting is conducted on a "without prejudice" basis, save as to costs (Calderbank principle).
- All points of consensus, agreements, and undertakings reached during the meeting must be reduced to writing and signed by authorised representatives of all parties on the day of the meeting.
- I reserve the right to attend accompanied by a support person or advisor of my choosing.

1.3 Agenda Acceptance

- This Agenda Input Document is submitted in good faith to facilitate a structured, meaningful engagement.

- Any additional items proposed by your client must be communicated to me in writing at least 24 hours prior to the meeting.

SECTION 2: MATERIAL DEVELOPMENTS AFFECTING THE DISPUTE

2.1 Independent Criminal Investigation – SAPS CAS 1954/3/2026

Background and Status

On 28 May 2026, I formally escalated a comprehensive evidence bundle to:

- The National Director of Public Prosecutions (NDPP); and
- The Specialised Commercial Crime Unit (SCCU).

The escalation concerns the following allegations:

Allegation	Basis
Perjury	Materially contradictory sworn statements made by representatives of AfroCentric Investment Corporation Limited across parallel court divisions (High Court Case No. 2026-086906 and Labour Court Case No. 2026-083299 / 2026-077546).
Defeating the Ends of Justice	Use of the High Court interdict to suppress a protected whistleblower disclosure while simultaneously denying knowledge of the underlying employment dispute in the Labour Court.
Statutory Fraud	Submission of false UI-19 documentation to the Department of Employment and Labour.

Current Status

Body	Status
SAPS Investigation	CAS 1954/3/2026, Cape Town Central, assigned to Sergeant L. Mahlasele
NDPP Review	Reviewing the evidence
SCCU Review	Reviewing the evidence

Transparency Obligation

In my correspondence, I formally requested that your client approach this matter with full transparency. In your correspondence of 4 June 2026, you similarly requested that I approach this matter with "transparency" and "good faith".

In giving effect to both requests, I place the following on record:

Every minute that passes without finalising a private resolution accelerates the independent review by the NDPP and SCCU. These processes are entirely beyond my control. Once prosecution decisions are made, they cannot be undone by a private settlement.

I raise this not as a threat, but as a demonstration of the very transparency I have asked of you and you have asked of me. I am ensuring that your client's Board and executive leadership are fully apprised of the escalating risk so that they can make informed decisions about whether to pursue a private resolution or to allow the independent criminal investigation to run its course.

I now expect the same level of transparency from your client regarding their position on the settlement framework, their timeline for engagement, and their decision-making authority.

Discussion Points

- 2.1.1. Whether both parties agree that the criminal investigation should be addressed as part of the settlement framework;
- 2.1.2. What mechanism will be used to bring the investigation to a formal close;
- 2.1.3. Whether there is mutual agreement that delay increases risk for all parties;
- 2.1.4. Whether your client is prepared to match the transparency I have demonstrated.

2.2 The Interim High Court Interdict (Case No. 2026-086906)

Background

- An interim interdict was granted ex parte on 16 April 2026.
- The rule nisi was extended to 1 March 2027 on 28 May 2026.
- The interdict restrains me from disclosing information to trade unions and regulators—overriding Section 9 of the Protected Disclosures Act, 2000.
- I have filed a Counter-Application for Declaratory Relief challenging the validity of the interdict.

My Position

- The interdict overrides my statutory rights under the Protected Disclosures Act.
- I will not accept a settlement that leaves the gag order in place.

Discussion Points

- 2.2.1. Agreement to formally discharge the interim interdict in its entirety;
- 2.2.2. Replacement with standard, balanced, reciprocal confidentiality clauses in the final settlement agreement;
- 2.2.3. Mutual consent to withdraw the rule nisi and dismiss the main application.

2.3 Costs Orders Arising from the High Court Proceedings

My Proposal

As part of a comprehensive settlement, all costs orders arising from court proceedings and the final determination of the rule nisi shall be mutually withdrawn. Each party shall bear its own costs in full and final settlement of all costs matters.

Discussion Point

- 2.3.1. Agreement that all costs orders in the High Court matter are dissolved as part of the settlement.

SECTION 3: SETTLEMENT FRAMEWORK – KEY TERMS

3.1 Full and Final Withdrawal of All Tracks

Upon execution of a signed settlement agreement, I am prepared to withdraw all statutory and litigation tracks, including but not limited to:

Track	Withdrawal Mechanism
NPA/SCCU Escalation (28 May 2026)	Formal withdrawal of the criminal complaint and request to close the investigation.
SAPS Investigation (CAS 1954/3/2026)	Formal withdrawal of the complaint and request to close the docket.
Labour Court Cases	Formal withdrawal of Case Nos. 2026-083299 and 2026-077546.
High Court Case	Consent to discharge the rule nisi and dismiss the interdict.
CCMA Matters	Withdrawal of all outstanding CCMA referrals.
Parliamentary Submission	Formal cessation of the oversight submission to the National Assembly.
Regulatory Filings	Withdrawal of complaints to: JSE, CIPC, SAHRC, B-BBEE Commission, Council for Medical Schemes, Information Regulator (POPIA), Department of Employment and Labour.
Legal Practice Council Complaint	Withdrawal of the complaint regarding the attorneys' conduct.
Professional Body Complaints	Withdrawal of complaints to SANC, HPCSA, and other professional bodies.

Discussion Points

- 3.1.1. Confirmation that your client accepts the above withdrawal mechanism;
- 3.1.2. Agreement on the timing of withdrawals (simultaneous with signing of settlement agreement);
- 3.1.3. Confirmation that your client will not seek to reopen any withdrawn tracks after settlement.

3.2 Correction of Statutory Documents

Document	Current Defect	Required Correction
UI-19 Form	Reflects "Voluntary Resignation" (Code 6)	Correct to reflect Constructive Dismissal to unlock UIF benefits.
Certificate of Service	Reflects "Care Coordinator"	Correct to reflect NQF 8 role of Case Manager / Specialist Nurse.
UIF Contributions (June 2025)	No declaration submitted despite deductions made	Confirmation of remittance and updated declaration.

Discussion Points

- 3.2.1. Agreement to issue corrected UI-19 form within 5 working days;
- 3.2.2. Agreement to issue corrected Certificate of Service within 5 working days;
- 3.2.3. Confirmation of UIF remittance for June 2025.

3.3 Professional Restoration

Item	Requirement
SANC Re-registration	Confirmation that your client will not oppose or obstruct my re-registration with the South African Nursing Council (SANC).
Professional Reference	Agreement to provide a neutral or positive professional reference upon request.
Clean Record	Confirmation that no adverse employment records will be retained or shared with future employers.

Discussion Points

- 3.3.1. Agreement not to oppose SANC re-registration;
- 3.3.2. Agreement to provide a neutral professional reference;
- 3.3.3. Agreement to expunge any adverse employment records.

3.4 Financial Settlement

Background

- A fully itemised quantification was provided on 15 April 2026.
- The quantification was provided at the express written request of your firm (Deney's letter of 15 April 2026).

The claim is grounded in:

- Unlawful salary deduction (40.47% in July 2025—breach of Section 34(2) of the BCEA);
- Constructive dismissal (Section 186(1)(e) of the LRA);
- Automatically unfair dismissal (Section 187(1)(h) of the LRA—retaliation for protected disclosures);
- Occupational detriment under the Protected Disclosures Act, 2000;
- Unfair discrimination and harassment (EEA);

- Career destruction and loss of future earnings.

My Proposal

A fair, adjusted financial settlement addressing:

- Historical salary disruptions;
- Immediate relocation/housing needs;
- Professional stabilization and reinstatement;
- Compensation for occupational detriment.

Item	Detail
Tax Directive	Your client to apply for a formal SARS Tax Directive under the category of "Compensation for Occupational Detriment"

Discussion Points

- 3.4.1. Your client's counter-proposal (if any);
- 3.4.2. Payment structure (lump sum / instalments / immediate first tranche);
- 3.4.3. Agreement to apply for SARS Tax Directive;
- 3.4.4. Agreement to provide full tax indemnity to ensure net amount is protected.

3.5 Reciprocal Non-Disclosure and Non-Disparagement

Clause	Requirement
Non-Disclosure	Bilateral agreement not to disclose the terms of the settlement agreement, except as required by law.
Non-Disparagement	Bilateral agreement not to make any disparaging statements about the other party, its directors, officers, or employees.
Press Releases	Agreement not to issue any press releases or public statements regarding the settlement without mutual written consent.
Regulatory Disclosures	Agreement that any regulatory disclosures required by law will be limited to the minimum necessary.

Discussion Points

- 3.5.1. Agreement to reciprocal non-disclosure and non-disparagement clauses;
- 3.5.2. Agreement on the scope and duration of the confidentiality obligations;
- 3.5.3. Agreement on the consequences of breach.

3.6 Mutual Release

Clause	Requirement
Full and Final Release	Mutual release of all claims, whether known or unknown, arising from the employment relationship and its termination.

Clause	Requirement
Indemnity	Mutual indemnity against any claims arising from the settlement.
No Admission of Liability	Express statement that the settlement does not constitute an admission of liability by either party.

Discussion Points

- 3.6.1. Agreement to a full and final mutual release;
- 3.6.2. Agreement to a mutual indemnity;
- 3.6.3. Agreement that the settlement does not constitute an admission of liability.

SECTION 4: TIMELINE FOR RESOLUTION

Milestone	Deadline / Requirement
Proposed Meeting Date	No later than Friday, 27 June 2026
Date Proposals from Respondent	By close of business Friday, 20 June 2026
Settlement Agreement	Finalised and signed on the day of the meeting
First Financial Tranche	Paid within 24 hours of signing
All Withdrawals	Effected within 5 working days of signing
Corrected UI-19 & Certificate of Service	Issued within 5 working days of signing

SECTION 5: CONSEQUENCES OF NON-RESOLUTION

If a settlement is not reached by the above deadline, I will regrettably have no choice but to:

- 5.1. Proceed with all statutory submissions and litigation tracks;
- 5.2. Allow the NPA/SCCU escalation to continue to an independent prosecution decision;
- 5.3. Proceed with the Parliamentary submission (which is irrevocable once lodged);

I stress that this is not my preferred outcome. My preference remains a fair, equitable, and comprehensive settlement that allows both parties to walk away with their reputations intact.

SECTION 6: CONCLUSION

This round table meeting represents a genuine opportunity for both parties to execute a fair, just, and equitable settlement before further formal processes are initiated.

I confirm that my statutory submissions and procedural actions remain on hold pending this meeting, provided the following conditions are met:

- A formal written agenda is circulated prior to the meeting;
- Representatives with full decision-making authority are present;
- All agreements are reduced to writing and signed on the day of the meeting.

My rights remain fully reserved.

Yours faithfully,

Sr Wilbur William Matthee
Self-Represented Complainant